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LYDIA SERRATOS, et al. v.

RIVIAN AUTOMOTIVE LLC, et al.

CASE NO.: 25NMWCV04440

HEARING: 9/17/2026 @ 9:30 a.m.

#15

TENTATIVE ORDER

Defendant Rivian Automotive,
LLC's Motion to Compel is granted.

Moving party(s) to give notice.

Defendant Rivian Automotive, LLC
moves for an order (1) compelling Plaintiffs Lydia Serratos and Frank Aragon to
arbitrate their claims in accordance with their arbitration agreement; and (2)
staying this action pending the outcome of the arbitration.

Background

Plaintiffs filed this action for
violations of the Song Beverly Warranty Act on December 15, 2025 against
Defendant Rivian Automotive LLC alleging (1) violation of Song-Beverly Act –
Breach of Express Warranty; (2) violation of Song-Beverly Act – Breach of
Implied Warranty; and (3) violation of Song-Beverly Act section 1793.2(b).

On June 9, 2026, Defendant Rivian filed the instant Motion to Compel Arbitration. On September 3, 2026, Plaintiff filed an opposition. On September 10, 2026, Defendant filed a reply.

Legal Standard

Under both the Federal Arbitration Act ("FAA") and the California Arbitration Act ("CAA"), arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code of Civ. Proc. § 1281.2.) This is usually done by presenting a copy of the signed, written agreement to the court. "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim, or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party's refusal to arbitrate the controversy. (Code of Civ. Proc. § 1281.2.)

The Court shall order arbitration unless it determines that grounds exist for the revocation of the agreement. (Code Civ. Proc. § 1281.2.) Under California law, and the Federal Arbitration Act, an arbitration agreement may be invalid based upon grounds applicable to any contract, including unconscionability, fraud, duress, and public policy, which would be matters for the court to decide. (Sanchez v. Western Pizza Enterprises, Inc. (2009) 172 Cal.App.4th 154, 165-166.)

Analysis

Defendant Rivian moves to compel arbitration of Plaintiffs' complaint for violations of the Song Beverly Warranty Act based on the arbitration provisions contained in (1) the Warranty

Agreement between Defendant Rivian and Plaintiffs; and (2) the lease agreement between non-party Rivian, LLC and Plaintiff Serratos (the "Motor Vehicle Agreement").

Defendant Rivian argues that, to the extent Plaintiffs claim they were not parties to the Warranty Agreement, they may be compelled to arbitrate pursuant to the arbitration provision contained therein based on equitable estoppel, direct benefits estoppel and third party beneficiary law. Defendant argues the Warranty Agreement's arbitration provision requires that any issues of arbitrability be decided by the arbitrator. As such, Defendant argues the Court may not reach the issue of whether the arbitration agreement applies here.

Defendant Rivian acknowledges that it is not a party to the Motor Vehicle Agreement, but argues it is entitled to move for arbitration thereunder based on equitable estoppel and as a third party beneficiary. Defendant Rivian argues that, like the Warranty Agreement, the Motor Vehicle Agreement contains an arbitrability provision requiring that issues of arbitrability be decided by the arbitrator. Defendant Rivian argues the Court may not resolve the issue of whether Defendant Rivian can move to compel arbitration pursuant to the Motor Vehicle Agreement.

Motion
not untimely

Plaintiffs oppose the motion on grounds that it is untimely under Code of Civil Procedure section 1281.5 subdivision (b). However, section 1281.5 applies to actions enforce liens on works of improvement, as indicated by its title and the substance of subdivision (a). Section 1281.5 is entitled "Waiver of right to arbitration; actions to enforce liens on works of improvement; notice of motion and motion to stay actions to pending arbitration." Section 1281.5 subdivision (a) provides, "Any person who proceeds to record and enforce a claim of lien by commencement of an action pursuant to Chapter 4 (commencing with Section 8400) of Title 2 of Part 6 of Division 4 of the Civil Code, does not thereby waive any right of arbitration the person may have pursuant to a written agreement to arbitrate, if, in filing an action to enforce the claim of

lien, the claimant does either of the following....”

FAA
applies

Defendant argues the FAA applies based on the express language of the Motor Vehicle Agreement, which states “This Section, Dispute Resolution – Arbitration and Class Action Waiver, its subject matter, formation and enforceability will be governed by the Federal Arbitration Act as interpreted by the federal courts, and not any state law regarding arbitration.” (Harden Dec., ¶5, Ex. A, p. 8, “Applicable Law.”) The Warranty Agreement also contains an express statement that the FAA “shall govern the subject matter, formation, procedure, and enforcement of this section.” (Harden Dec., Ex. B, ¶16, “Applicable Law.”) “The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.” (Davis v. Shiekh Shoes, LLC (2022) 84 Cal.App.5th 956, 963.)

Defendant also engages in the “interstate commerce” analysis in footnote one of the motion. “[T]he United States Supreme Court has identified three categories of activity that Congress may regulate under the commerce power: (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce and persons or things in interstate commerce, and (3) those activities having a substantial relation to interstate commerce. The party asserting FAA preemption bears the burden to present evidence establishing a contract with the arbitration provision affects one of these three categories of activity, and failure to do so renders the FAA inapplicable.” (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 238.)

Defendant establishes that the Warranty Agreement involved interstate commerce. The vehicle was manufactured in Normal, IL and shipped to California via interstate commerce channels. (Harden Dec., ¶6.) Harden claims the lease transaction took place over the Internet. (Harden Dec., ¶¶2-5.)

Warranty
Agreement

Defendant relies on the Warranty Agreement issued with the vehicle at the time of lease. The Warranty Agreement issued by Defendant was incorporated by reference into the Motor Vehicle Agreement, which Plaintiffs signed. The Warranty Agreement contains an express arbitration provision, which states that Plaintiffs and Rivian agree to “resolve all Disputes by binding arbitration conducted by the American Arbitration Associations (“AAA”) in accordance with the AAA Consumer Arbitration Rules, unless you and we agree otherwise.” (Harden Dec., Ex. B, ¶16.)

“‘Dispute’ is to be given the broadest possible meaning that will be enforced and means any dispute, demand, claim, or controversy of any kind between you and Rivian, whether based in contract, tort, statute, demand, claim, or controversy of any kind between you and Rivian, including but not limited to any claim for...breach of express or implied warranties, or violations of consumer protection...laws, that arises out of or in any way relates to (1) this Agreement; (2) our relationship...; (3) the purchase, sale, condition, design, or manufacturing of the Vehicle; (4) Rivian products or services; (5) advertising and other communications between you and Rivian; and as applicable, (6) your credit application.” (Id.)

Defendant submits evidence that notice of the Warranty Agreement was provided to Plaintiffs in the Motor Vehicle Agreement, as well as a hyperlink to the Warranty Agreement. (Harden Dec., ¶17.) The Motor Vehicle Agreement was signed on June 13, 2024. (Id. at ¶15.) The Warranty Agreement references and incorporates the binding arbitration clause in the Motor Vehicle Agreement. (Id. at Ex. B, p. 8.)

Plaintiffs’ complaint is based on a dispute covered by the Warranty Agreement. Plaintiffs expressly allege that express warranties accompanied the Motor Vehicle Agreement and the claims are based on breach of those express warranties. (Complaint, ¶¶18, 22, 47-49.) Plaintiffs also testify that they never opted out of the arbitration provision as allowed for therein. (Hamblin Dec., ¶13.)

Defendant satisfies its burden of establishing an applicable arbitration agreement with the Warranty Agreement. (Kostandian v. American Honda Motor Co. (2026) 120 Cal.App.5th 872, 881 (manufacturer satisfied its burden of establishing existence of applicable arbitration agreement based on arbitration provision contained in warranty booklet and evidence confirming plaintiff's receipt of warranty booklet).) The burden therefore shifts to the Plaintiffs to dispute the existence of an arbitration agreement with Defendant.

Plaintiffs argue there is no evidence that they agreed to the warranty guide. Plaintiffs argue they never signed or otherwise expressly affirm his consent to the warranty guide. Plaintiffs argue there is no evidence that they received the warranty guide until after purchase. Plaintiffs argue their failure to opt out is insufficient to establish their consent to the arbitration provision contained in the Warranty Agreement. Plaintiffs also argue warranties do not create obligations on the buyer, only the seller.

Plaintiffs fail to rebut Defendant's showing that the arbitration provision contained in the Warranty Agreement applies. Plaintiffs rely heavily on case law explaining the nature of warranty obligations. (Daugherty v. Am. Honda Motor Co. (2006) 144 Cal.App.4th 824, 830; Weinstat v Dentsply Internat., Inc. (2010) 180 Cal.App.4th 1213, 1228.)

However, the obligation in question is the obligation to arbitrate contained in the warranty, not the warranty obligation itself. Plaintiffs fail to cite any authority holding that an arbitration provision in a warranty handbook is unenforceable as an issue of law. In fact, the Court of Appeal in Kostandian found the defendant manufacturer established an applicable arbitration agreement based on the arbitration agreement contained in its warranty booklet and evidence that the plaintiff had received the owner's manual and warranty information. (Kostandian, supra, 120 Cal.App.5th at 882.) The Court went on to find that the plaintiff failed to rebut the existence or applicability of the warranty booklet to his claims against the manufacturer. The Court found the plaintiff never disputed the existence of the arbitration agreement with American Honda in the warranty booklet.

(Id. at 883.) The Court rejected precisely the same arguments raised by Plaintiff attacking consent. “While respondent here posits there was no mutual assent since he did not receive the warranty booklet until after the sale was completed, no evidence was presented supporting this assertion. Respondent provided no declaration stating when he received the warranty booklet.” (Id. at ¶884.) Even if such a declaration were presented, the testimony would have been at odds with his signed acknowledgment of receipt and his complaint allegations that representations were made to him in the Manufacturer’s New Vehicle Limited Warranty. (Id.)

Here, Plaintiffs failed to submit any evidence that they did not receive the Warranty Agreement until long after the sale. Plaintiffs do not deny that the Motor Vehicle Agreement incorporated the Warranty Agreement by reference or that the Motor Vehicle Agreement set forth a hyperlink to the Warranty Agreement in paragraph 13. (Harden Dec., Ex. A, ¶13.) Plaintiffs undisputedly signed the Motor Vehicle Agreement. Plaintiffs also allege that express warranties accompanied the sale of the vehicle to them. (Complaint, ¶8.) The evidence establishes Plaintiffs’ knowledge and receipt of the Warranty Agreement.

For these reasons, Defendant establishes the existence of an applicable arbitration agreement between Defendant and Plaintiffs based on the Warranty Agreement. Plaintiffs fail to rebut this showing.

Although the Motor Vehicle Lease Agreement is only signed by Plaintiff Lydia Serratos, Plaintiffs allege that they both entered into the Motor Vehicle Lease Agreement and both are suing on the express warranty issued by Defendant. Plaintiffs are equitably estopped from denying the enforceability of the Warranty Agreement based on these facts.

Delegation
Clause in Warranty Agreement

Defendant argues the delegation clause precludes the Court from reviewing whether the Warranty Agreement is

enforceable and applicable to Plaintiff's claims. "When a dispute arises between parties to an arbitration agreement, the parties may disagree not only about the merits of the dispute but also about the threshold arbitrability question—that is, whether their arbitration agreement applies to the particular dispute. The high court has recognized that parties may agree by contract that an arbitrator, rather than a court, will resolve threshold arbitrability questions as well as underlying merits disputes. Such threshold or 'gateway' questions of arbitrability include whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy." (Sandoval-Ryan v. Oleander Holdings LLC (2020) 58 Cal.App.5th 217, 222–223 (quoting *Henry Schein, Inc. v. Archer and White Sales, Inc.* (2019) -- U.S. – (139 S.Ct. 524, 527, 202 L.Ed. 2d 480).)

"Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. They can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration." (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 241.)

"[A] party's challenge to the arbitration agreement does not invalidate the delegation clause, and therefore the arbitrator, and not a court, must consider any challenge to the arbitration agreement as a whole. Stated another way, Rent-A-Center acknowledges that while courts may consider enforceability challenges specific to delegation clauses, the arbitrator is to consider challenges to the arbitration agreement as a whole." (Id. at 240 (adopting analysis under FAA of delegation clause challenges versus challenges to arbitration agreement in *Rent-A-Center, West, Inc. v. Jackson*, 561 U.S. 63, 72 (2010).)

"There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (Id. at 242.)

The arbitration agreement in the Warranty Agreement states, "[t]he arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve all disputes arising out of or relating to the interpretation, applicability, enforcement, or formation of this Section, including but not limited to any claim that all or any party of this section is void or voidable. The arbitrator shall also have exclusive

authority to resolve all threshold issues of arbitrability, including whether a Dispute is subject to arbitration, issues relating to whether this Section is applicable, unconscionable, or illusory, and any defense to arbitration, including waiver, delay, laches, or estoppel.”

(Harden Dec., Ex. B, ¶16, p. 10.)

The delegation clause is clear and unmistakable and delegates issues concerning formation of the agreement to the arbitrator. Plaintiffs also do not raise any state law defenses to the delegation clause apart from their claim that they never consented to the arbitration agreement contained in the Warranty Agreement. Despite the broad form delegation clause delegating questions of formation to the arbitrator, it is the court that must determine the threshold question of whether the parties ever agreed to arbitrate “at all.” (Mendoza v. Trans Valley Transport (2022) 75 Cal.App.5th 748, 772-777.)

Plaintiffs are claiming that they never agreed to the arbitration agreement in the Warranty Agreement at all. As such, the Court must determine the threshold issue of whether Plaintiffs ever agreed to the arbitration agreement in the Warranty Agreement. For the reasons stated above, the Court finds sufficient evidence of Plaintiffs' knowledge and consent to the Warranty Agreement, including the arbitration agreement therein.

Defendant's Motion to Compel

Arbitration is granted based on the Warranty Agreement. Defendant establishes the existence of an applicable arbitration agreement, including Plaintiffs' consent thereto. Plaintiffs fail to establish any grounds rendering the agreement unenforceable or that they did not consent to the arbitration provision.

Conclusion

Defendant's Motion to Compel

Arbitration is granted.